

Trusts simple or special. — Simple trust defined. — Of trusts there were two kinds: the *simple* trust, and the *special* trust. The *simple* trust was defined in legal phraseology to be, “a confidence, not issuing out of the land, but as a thing collateral, annexed in privity to the estate of the land, and to the person touching the land, *scilicet*, that *cestui que use* should take the profit, and that the terre-tenant should execute an estate as he should direct”^(b). In order rightly to understand what was meant by this rather technical description, we shall briefly consider the principles that were recognised by Courts of Equity (for these had the exclusive jurisdiction of trusts), First, with reference to the terre-tenant or feoffee to uses, and Secondly, with reference to the beneficial proprietor, or *cestui que use*.

Confidence in the person. — With respect to the feoffee to uses, it was first held to be absolutely indispensable that there should be *confidence in the person*, and *privity of estate*. For want of the requisite of *personal confidence* it was ruled that a *corporation* could not stand seised to a use; for how, it was said, could a corporation be capable of confidence when it had not a *soul*? Nor was it competent for the *king* to sustain the character of trustee; for it was thought inconsistent with his high prerogative that he should be made responsible to his own subject for the due administration of the estate. And originally the *subpœna* lay against the trustee himself only, and could not have been sued against either his *heir* or *assign*; for the confidence was declared to be personal, and not to accompany the devolution of the property ^(c). But the doctrine of the Court in this respect was subsequently put on a more liberal footing, and it came to be held that both heir and assign should be liable to the execution of the use ^(d). An exception * however was still made in favour of a purchaser for valuable consideration not affected by notice ^(a).

Privity of estate. — The meaning of *privity of estate* may

(b) Co. Lit. 272, b.

(c) 8 E. 4. 6; 22 E. 4. 6.

(d) The law as to the heir was

altered by Fortescue, Ch. J. Bac. Ab. Uses and Trusts B.

(a) Bac. Ab. Uses and Trusts B; and see 14 H. 8. 4, 7, 8.